

26STCV08262 26STCV08262

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C07%2F22%2F2026

Source SHA-256: fcb51ed3605e45ff656a3eb63dd65676e5953c47e66df0e96c157cbaff756e78

Case Number: 26STCV08262 Hearing Date: July 22, 2026 Dept: 731

JOSEPH GOMEZ, an individual, Plaintiff(s), vs. AMAZON.COM, INC., a corporation, AMAZON.COM SERVICES LLC, a limited liability company, AMAZON RETAIL LLC, a limited liability company, DARREN DUONG, an individual, and DOES 1-50, inclusive, Defendant(s).

[TENTATIVE] ORDER RE: DEFENDANTS AMAZON.COM, INC., AMAZON.COM SERVICES LLC, AMAZON RETAIL LLC AND DARREN's DEMURRER TO PLAINTIFF JOSEPH GOMEZ'S COMPLAINT Dept. 731 8:30 a.m. July 22, 2026

Moving Party: Defendants, Amazon.com, Inc., Amazon.com Services LLC, Amazon Retail LLC, and Darren Duong

Opposing Party: Plaintiff, Joseph Gomez

Notice: OK

1. Background Facts

Plaintiff Joseph Gomez sues Defendants pursuant to a Complaint alleging Fair Employment and Housing Act ("FEHA"), Labor Code, and common law claims arising from allegations that, while employed by Defendants, Plaintiff experienced disability discrimination, unlawful termination of employment, and failure to pay wages upon termination.

Now before the Court is Defendants' opposed demurrer to Plaintiff's second cause of action for FEHA Harassment, as alleged against Defendants Amazon.com, Inc. and Darren Duong.

2. Demurrer

a. Legal Standard on Demurrer

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747; see Code Civ. Proc., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A demurrer may only be used to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence. (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447, superseded by statute on other grounds as stated in *White v. Cridlebaugh* (2009) 178 Cal.App.4th 506, 521.)

b. Meet and Confer

Defendants' papers show meet and confer efforts preceded the filing and service of the demurrer before the Court. (Demurrer, Ruane Decl., ¶¶ 5-7, Ex. A; see Code Civ. Proc., § 430.41, subd. (a)(3)(B).)

c. Discussion

Defendants' briefing combines the legal arguments in favor of sustaining Defendants' demurrer in favor of Amazon.com, Inc., and of Darren Duong. The Court below mirrors the briefing and discusses the merits of the FEHA Harassment claim jointly as relates to these two Defendants.

The crux of Defendants' demurrer is that Plaintiff's Complaint premises FEHA harassment liability against Amazon.com, Inc., and Darren Duong on allegations amounting to un-actionable personnel management activities by Mr. Duong, and because the allegations supporting the FEHA harassment claim do not rise to severe or pervasive conduct as a matter of law. (Demurrer, pp. 3-7.)

The traditional rule is that to establish harassment under FEHA, a plaintiff must show: (1) plaintiff belongs to a protected group; (2) plaintiff was subject to harassment; (3) the harassment complained of was based on the plaintiff's membership in the protected group; (4) the harassment complained of was sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment; and (5) respondeat superior. (*Jones v. Dept. of Corrections & Rehabilitation* (2007) 152 Cal.App.4th 1367, 1377 (*Jones*).)

Common personnel management actions such as hiring, job assignments, and performance evaluations do not come within the meaning of harassment. (*Reno v. Baird* (1998) 18 Cal.4th 640, 646-647 (*Reno*), superseded by statute on other grounds.) However, in some cases, official employment actions may convey a hostile message, and therefore evidence that would otherwise be associated with a discrimination claim can form the basis of a harassment claim (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 708 (*Roby*)), where discrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace (*Doe v. Dept. of Corrections & Rehabilitation* (2019) 43 Cap.App.5th 721, 736 (*Doe*), citations and quotations omitted).

Here, the nexus of the above authority shows a clear basis for FEHA Harassment as alleged in the Complaint. Specifically, the Complaint alleges that Plaintiff's supervisor, already aware of Plaintiff's protected characteristic, disability, ignored the medical restrictions already placed on Plaintiff's employment and instead wrongfully and repeatedly rushed Plaintiff through his work, thereafter frequently writing Plaintiff up for minor workplace issues, many of which related to the pace at which Plaintiff could complete tasks, with Defendants ultimately relying on those writeups to terminate Plaintiff's employment. (See Complaint, ¶¶ 13-16.) For demurrer purposes, the Complaint alleges that Defendant Duong repeatedly disregarded Plaintiff's

medical restrictions, criticized Plaintiff for limitations caused by his disability, and repeatedly documented performance deficiencies resulting from those limitations. Liberally construed, these allegations permit the inference that Defendant used official supervisory actions as a vehicle to communicate hostility toward Plaintiff's disability, thereby supporting both discrimination and harassment theories under Roby.

While Defendants' reply appears to argue that Plaintiff mischaracterizes Roby insofar as Roby allegedly holds that where personnel management decisions are unlawful, only discrimination is actionable and harassment is not viable (Reply, pp. 3-4), this is not exactly the state of the law. More appropriately, the law is: Common personnel management actions that are necessary to carry out the duties of business and personnel management may retrospectively be found discriminatory if based on improper motives, and in such an event, the remedies provided by the FEHA are those for discrimination, not harassment (Reno, supra, 18 Cal.4th at pp. 646-647); however, a single act can constitute both discrimination and harassment and the two claims may be supported by overlapping evidence, such as when a supervisor uses official actions as a means to convey the supervisor's offensive message. (Roby, supra, 47 Cal.4th at p. 708-710.) For example, in *Miller v. Dept. of Corrections* (2005) 36 Cal.4th 446, 452-459, the court determined that official employment actions of promotions and assignments given to female employees constituted the evidentiary basis of a harassment cause of action where the subject supervisor used official actions as means of conveying the offensive message that women were viewed as sexual playthings or required to engage in sexual conduct to get ahead. Here, as set forth in the preceding paragraph, the Complaint sufficiently alleges official actions (writeups) as a means to convey the supervisor's offensive message (it is not okay to be accommodated on the job, perform the work as directed, not as medically restricted).

Last, the Court finds insufficient merit in Defendants' argument that the conduct alleged in the Complaint was not severe or pervasive. The Complaint sufficiently pleads ultimate facts to describe a concerted and ongoing campaign by Defendant Duong to write Plaintiff up for minor work violations arguably in violation of his medical restrictions, with Plaintiff experiencing distress as a result and Defendants relying on those writeups to terminate Plaintiff's employment. (Complaint, ¶¶ 13-16.)

Whether the alleged course of conduct rises to the level of severe or pervasive harassment ordinarily presents a factual question not suitable for resolution on demurrer. Accepting the allegations as true, Plaintiff has alleged an ongoing pattern of conduct sufficient to survive pleading review.

d. Conclusion

Defendants Amazon.com, Inc., Amazon.com Services LLC, Amazon Retail LLC, and Darren Duong' demurrer is OVERRULED.

Defendants are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 22, 2026 _____

MARK C. KIM

Judge of the Superior Court